

M/s J.K. Foods Corporation v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 January 2023 · Writ-C No. 44487 of 2009 · **Writ disposed; Clause 6.5 objection to be decided; recovery to abide.**

HEADNOTE

A writ challenging electricity-dues recovery was disposed of on consent. The consumer was permitted to file an objection under Clause 6.5 of the Electricity Supply Code, 2005 before respondent no. 2, who is to decide it by speaking order; the impugned recovery is to abide that decision. The Court did not examine the bills or the Consumer Forum's earlier accounts direction.

FACTUAL SUMMARY

M/s J.K. Foods Corporation challenged a recovery certificate dated 6 June 2009 and a recovery citation dated 24 June 2009 for electricity dues. It had complained to the District Consumer Forum about the bills; by order dated 2 April 2008 the Forum directed the Electricity Department to furnish complete accounts after adjusting amounts already paid. The petitioner alleged that direction was not complied with and recovery was issued instead. After listings from 2009, the writ was taken up in January 2023.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

On the licensee's no-objection, the writ against electricity-dues recovery was disposed of by permitting the consumer to file an objection under Clause 6.5 of the Electricity Supply Code, 2005 before respondent no. 2 within two weeks, directing that officer to decide it by speaking order, and providing that the impugned recovery would abide that decision.

¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILLS AND VALIDITY OF THE RECOVERY CERTIFICATE AND CITATION

Left to respondent no. 2 on the Clause 6.5 objection; recovery to abide that speaking order. ¶ 1

NOT DECIDED — WHETHER THE ELECTRICITY DEPARTMENT COMPLIED WITH THE DISTRICT CONSUMER FORUM'S 2.4.2008 ACCOUNTS DIRECTION

¶ 1